

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

15 CV 912

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MICHAEL GLICK and JOHN LACY,

Civil Action No:

COMPLAINT

Plaintiffs,

Jury Trial Demanded

-against-

THE CITY OF NEW YORK,
THE NEW YORK CITY POLICE DEPARTMENT,
P. O. CRAIG SIKORSKI, P. O. COLIN SULLIVAN,
"JOHN DOE NO. 1" AND "JOHN DOE NO. 2",



Defendants.
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Plaintiffs MICHAEL GLICK and JOHN LACY, by their attorneys, CAESAR and NAPOLI, P. C., alleges the following, upon information and belief, as their Complaint;

NATURE OF THE ACTION

1. This civil rights action arises from the defendant Police Officers' unlawful and improper arrest and imprisonment of plaintiffs, unlawful strip search of plaintiffs and the use of excessive force upon plaintiffs on November 17, 2013.

2. Plaintiffs seek declaratory relief pursuant to 28 U.S.C. § 2201, compensatory and punitive damages for violation of plaintiff's civil rights pursuant to 42 U.S.C. § 1981, 1983, 1985 and 1986 and an award of costs, disbursements and attorney's fees under 42 U.S.C. § 1988;

JURISDICTION

3. This action arises under violations of plaintiffs' Civil Rights protected under the United States Constitution inclusive of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution and actionable pursuant to 42 U.S.C. § 1981, 1983, 1985 and 1986. This Court has subject matter jurisdiction pursuant to 28 U.S.C. § 1331 and 28 U.S.C. § 1343(a);

4. Plaintiffs assert jurisdiction over the City of New York and The New York City Police Department of all claims in this Court under 28 U.S.C. §1367. Plaintiffs request that this Court exercise supplemental jurisdiction over those state law claims that are so related to claims in the action within such original jurisdiction that they form part of the same case or controversy as do plaintiffs' federal claims pursuant to 28 U.S.C. §1367;

VENUE

5. Venue is proper in the County of New York because plaintiffs reside in that County and the events forming the basis of plaintiffs' complaint occurred in that District;

NOTICE OF CLAIM

6. On or about January 27, 2014, and within 90 days after the claim arose, plaintiff MICHAEL GLICK caused a Notice of Claim to be served upon defendants, The City of New York and The New York City Police Department.

7. On or about February 14, 2014, and within 90 days after the claim arose, plaintiff JOHN LACY caused a Notice of Claim to be served upon defendants, The City of New York and The New York City Police Department.

8. The Notice of Claim was delivered to the person designated by law as a person to whom such claims may be presented and served;

9. The Notice of Claim was in writing, sworn to by the plaintiffs and contained the name and post office address of the plaintiffs and plaintiffs' attorney, the nature of the claim, the time when the place where and the manner by which the claim arose, and the damage and injuries claimed to have been sustained;

10. Defendants, The City of New York and The New York City Police Department have failed and refused to pay and/or adjust the claim within the statutory period of time;

11. This action has been started within one year and ninety days after the happening of the event upon which the claim is based;

PARTIES

12. Plaintiffs, MICHAEL GLICK and JOHN LACY, are residents of the United States of America residing in the State of New York, County of New York.

13. Defendant, The City of New York is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York;

14. Defendant, The City of New York, has established and maintains The City of New York Police Department as a department or agency of the defendant, The City of New York;

15. At all times relevant, defendants The City of New York and The New York City Police Department employed the individual defendants, POLICE OFFICER CRAIG SIKORSKI, shield No. 962, Police Officer COLIN SULLIVAN, shield no. 13597, "JOHN DOE NO. 1" and "JOHN DOE NO. 2";

16. At all times relevant, defendant, POLICE OFFICER CRAIG SIKORSKI was a duly appointed and acting police officer of the City of New York, New York City Police Department;

17. At all times relevant, defendant, Police Officer COLIN SULLIVAN was a duly appointed and acting police officer of the City of New York, New York City Police Department;

18. At all times relevant, defendant Police Officers "JOHN DOE NO. 1" and "JOHN DOE NO. 2" were duly appointed and acting police officers of the City of New York, New York City Police Department;

19. At all times relevant, the individual defendants were acting under the color of State Law;

20. At all times relevant, the individual defendants were acting in their individual and

official capacity as employees of defendants The City of New York, New York City Police Department;

21. Notwithstanding their unconstitutional and unlawful conduct, the actions of the individual defendants were taken in the course of their duties and were incidental to their otherwise lawful function as agents, servants and employees of The City of New York, New York City Police Department;

FACTS UNDERLYING PLAINTIFF'S CLAIMS FOR RELIEF

22. That on or about November 17, 2013 at approximately 5:00 a.m. of that day, plaintiffs, MICHAEL GLICK and JOHN LACY were walking near their home in Manhattan, New York.

23. As Plaintiffs were nearing their home, plaintiff were approached by either defendant CRAIG SIKORSKI AND OR COLIN SULLIVAN;

24. Thereafter, Defendants proceeded to attack, assault, batter , kick and punch plaintiffs;

25. Defendants further placed handcuffs on the plaintiffs;

26. Plaintiffs did not resist arrest;

27. Plaintiffs did not struggle with defendants;

28. Plaintiffs did not fight or strike any of the police officers;

29. The defendant Police Officers were all significantly larger in height and weight than plaintiffs;

30. Plaintiffs were taken back into the police station and brought to a holding cell located on a lower level of the premises;

31. Defendant, thereafter removed plaintiffs' hand cuffs and strip-searched the

plaintiffs;

32. Defendant took plaintiff's clothing and left plaintiff-MICHAEL GLICK in the holding cell in his boxer shorts for approximately nineteen hours; Plaintiff JOHN LACY was detained for approximately six hours.

33. Plaintiff MICHAEL GLICK suffered from the physical effects of the beaten the plaintiff MICHAEL GLICK received by defendants.

34. After approximately nineteen hours in the holding cell, plaintiff MICHAEL GLICK was released; Plaintiff JOHN LACY was released after approximately six hours in the holding cell.

35. Upon his release, Plaintiff MICHAEL GLICK was charged with assault in the second degree, attempted criminal possession of a weapon in the second degree, obstructing governmental administration in the second degree, resisting arrest and disorderly conduct and plaintiff was required to appear in Criminal Court to answer these charges;

36. Plaintiff MICHAEL GLICK suffered from physical injuries as a result of the aforementioned events which required medical treatment and caused him to incur the cost for medical care;

37. Plaintiffs suffered financial loses as a result of this arrest and lost wages as a result;

38. Plaintiff, MICHAEL GLICK was arrested and charged criminally with various crimes including disorderly conduct and resisting arrest, neither of which he was guilty of committing;

39. Plaintiff, MICHAEL GLICK, was searched, jailed, photographed, finger printed and was required to appear in Criminal Court to defend himself against the false charges stemming from the aforementioned incident. Plaintiff was forced to return to Court on numerous

subsequent occasions in connection with these criminal proceedings;

40. Plaintiff MICHAEL GLICK was subsequently formally charged and arraigned in Criminal Court with crimes stemming from the aforementioned incident. He made numerous appearances in Court and was forced to retain and pay monies for a lawyer;

41. On or about November 10, 2014, plaintiff received a dismissal and sealing of all charges upon the prosecution motion.

42. Plaintiff, MICHAEL GLICK, was arrested, charged and imprisoned by defendants even though he had committed no crime and defendants knew, or should have known, that there was no reasonable basis for believing that plaintiff had committed any crime;

43. Plaintiff sustained physical injury as a result of the physical assault and battery upon him by defendants. Plaintiff also sustained great emotional harm as a result of the assault, battery, incarceration and prosecution against him predicated upon the acts of defendants;

44. Plaintiff, MICHAEL GLICK, was forced to hire a lawyer to defend himself from the false charges levied against him and expended monies for said representation;

45. Plaintiff, MICHAEL GLICK, suffered great disgrace, embarrassment, loss of self-esteem and emotional harm resulting from the aforesaid arrest, imprisonment and arraignment on these false charges;

46. Plaintiff, JOHN LACY, was searched, arrested and detained for the crime which he was guilty of committing;

47. Plaintiff, JOHN LACY, sustained physical injury as a result of the physical assault and battery upon him by defendants. Plaintiff also sustained great emotional harm as a result of the assault, battery, incarceration and prosecution against him predicated upon the acts of defendants;

48. Plaintiff, JOHN LACY, suffered great disgrace, embarrassment, loss of self-esteem and emotional harm resulting from the aforesaid arrest, imprisonment.

**AS FOR FIRST CAUSE OF ACTION ON BEHALF
OF PLAINTIFF MICHAEL GLICK FOR
VIOLATION OF PLAINTIFF'S RIGHT TO BE FREE
FROM UNREASONABLE SEARCHES AND
SEIZURES UNDER THE FOURTH, FIFTH AND
FOURTEENTH AMENDMENTS TO THE UNITED
STATES CONSTITUTION PREDICATED UPON
FALSE ARREST AND IMPRISONMENT**

49. Plaintiff MICHAEL GLICK repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

50. As a result of the aforescribed actions, including the arrest of plaintiff without probable cause, the defendants individually deprived plaintiff, MICHAEL GLICK, of the rights, privileges and immunities secured by the Constitution and laws of the United States and the Fourteenth Amendments;

51. As a result of the aforescribed actions, the defendants individually deprived plaintiff, MICHAEL GLICK, of the right to be free from unreasonable search and seizures secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

52. As a result of the aforescribed actions, the defendants individually deprived plaintiff, MICHAEL GLICK, of his right to liberty without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

53. As a result of the aforescribed actions, including the patently offensive and disparaging remarks made by defendant during the aforementioned seizure, arrest and

incarceration of plaintiff, the defendants individually deprived plaintiff, MICHAEL GLICK, of Equal Protection under the Law secured by the Constitution and laws of the United States and the Fourteenth Amendments;

54. The aforescribed conduct by defendants was instigated by defendants for other than lawful reasons and without probable cause;

55. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. § 1981, 1983, 1985 and 1986;

56. The aforescribed acts of defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

57. As a result of the foregoing, plaintiff has suffered damages;

**AS AND FOR A SECOND CAUSE OF ACTION ON
BEHALF OF PLAINTIFF MICHAEL GLICK FOR
VIOLATION OF PLAINTIFF'S RIGHT TO BE FREE
FROM UNREASONABLE SEARCHES AND
SEIZURES UNDER THE FOURTH, FIFTH AND
FOURTEENTH AMENDMENTS TO THE UNITED
STATES CONSTITUTION PREDICATED UPON
USE OF EXCESSIVE FORCE**

58. Plaintiff MICHAEL GLICK repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

59. As a result of the aforescribed actions, including the use of excessive physical force upon the plaintiff, the defendants individually deprived plaintiff, MICHAEL GLICK, of the rights, privileges and immunities secured by the Constitution and laws of the United States and the Fourteenth Amendments;

60. As a result of the aforescribed actions, the defendants individually deprived

plaintiff, MICHAEL GLICK, of the right to be free from unreasonable seizures secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

61. As a result of the aforescribed actions, the defendants individually deprived plaintiff, MICHAEL GLICK, of his right to liberty without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

62. As a result of the aforescribed actions, including the patently offensive and disparaging remarks made by defendants during the aforementioned use of excessive force upon plaintiff, the defendants individually deprived plaintiff, MICHAEL GLICK, of Equal Protection under the Law secured by the Constitution and laws of the United States and the Fourteenth Amendments;

63. The aforescribed conduct by defendants was instigated by defendants for other than lawful reasons and without probable cause;

64. The amount and type of physical force used upon plaintiff MICHAEL GLICK by defendants was unnecessary, improper, excessive and not reasonably justified under any circumstances;

65. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §1981, 1983, 1985 and 1986;

66. The aforescribed acts of defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights and physical well-being;

67. The aforementioned use of force caused immediate injury in the form of physical and emotional pain, suffering, bruises, shock, fright, humiliation, embarrassment and deprivation of plaintiff's constitutional rights;

68. As a result of the foregoing, plaintiff has suffered damages;

**AS AND FOR A THIRD CAUSE OF ACTION ON
BEHALF OF PLAINTIFF MICHAEL GLICK FOR
VIOLATION OF PLAINTIFF'S RIGHT TO BE FREE
FROM UNREASONABLE SEARCHES AND
SEIZURES UNDER THE FOURTH, FIFTH AND
FOURTEENTH AMENDMENTS TO THE UNITED
STATES CONSTITUTION PREDICATED UPON
THE ILLEGAL STRIP SEARCH OF PLAINTIFF BY
DEFENDANTS**

69. Plaintiff MICHAEL GLICK repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

70. As a result of the aforescribed actions, including the illegal strip search of the plaintiff by the defendants without probable cause to believe that plaintiff possessed contraband of any sort, the defendants individually deprived plaintiff, MICHAEL GLICK, of the rights, privileges and immunities secured by the Constitution and laws of the United States and the Fourteenth Amendments;

71. As a result of the aforescribed actions, the defendants individually deprived plaintiff, MICHAEL GLICK, of the rights to be free from unreasonable searches and seizures secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

72. As a result of the aforescribed actions, the defendants individually deprived plaintiff, MICHAEL GLICK, of his right to liberty without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

73. As a result of the aforescribed actions, including the patently offensive and disparaging remarks made by defendants prior to and during the aforementioned strip search, the

defendants individually deprived plaintiff, MICHAEL GLICK, of Equal Protection under the Law secured by the Constitution and laws of the United States and the Fourteenth Amendments;

74. The strip search of plaintiff, MICHAEL GLICK, by defendants was unnecessary, improper, excessive and not reasonably justified under any circumstances;

75. The aforescribed conduct by defendants was instigated by defendants for other than lawful reasons and without probable cause;

76. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. § 1981, 1983, 1985 and 1986;

77. The aforescribed acts of defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights and physical well-being;

78. The aforementioned strip search caused immediate injury in the form of emotional pain, suffering, shock, fright, humiliation, embarrassment and deprivation of plaintiff's constitutional rights;

79. As a result of the foregoing, plaintiff has suffered damages;

**AS AND FOR A FOURTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF MICHAEL GLICK FOR
VIOLATION OF PLAINTIFF'S RIGHT TO LIFE
AND LIBERTY UNDER THE FIFTH AND
FOURTEENTH AMENDMENTS TO THE UNITED
STATES CONSTITUTION PREDICATED UPON
THE DEFENDANTS' FAILURE TO PROVIDE
MEDICAL TREATMENT**

80. Plaintiff MICHAEL GLICK repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

81. As a result of the aforescribed actions, including the failure of defendants to provide medical treatment to plaintiff, the defendants individually deprived plaintiff, MICHAEL GLICK, of the rights, privileges and immunities secured by the Constitution and laws of the United States and the Fourteenth Amendments;

82. As a result of the aforescribed actions, the defendants individually deprived plaintiff, MICHAEL GLICK, of his right to life and liberty without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

83. The aforescribed conduct by defendants was instigated by defendants for other than lawful reasons and without probable cause;

84. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. § 1981, 1983, 1985 and 1986;

85. The aforescribed acts of defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights and physical well-being;

86. The aforementioned failure to provide medical treatment caused immediate injury in the form of physical and emotional pain, suffering, shock, fright, humiliation, embarrassment and deprivation of plaintiff's constitutional rights;

87. As a result of the foregoing, plaintiff has suffered damages;

**AS AND FOR A FIFTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF MICHAEL GLICK FOR
FAILURE TO INTERVENE TO PREVENT THE
VIOLATION OF PLAINTIFF'S CIVIL RIGHTS**

88. Plaintiff MICHAEL GLICK repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth

more fully herein;

89. As a result of the aforescribed actions, defendants, in particular the superior officers and those “John Doe” defendants who had supervisory authority over the individual defendants, individually, failed to intervene to prevent or end the unlawful and unconstitutional conduct inflicted upon plaintiff by defendants;

90. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. § 1981, 1983, 1985 and 1986;

91. The aforescribed acts of defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights and physical well-being;

92. The aforementioned failure to intervene caused immediate injury in the form of physical and emotional pain, suffering, shock, fright, humiliation, embarrassment and deprivation of plaintiff's constitutional rights;

93. As a result of the foregoing, plaintiff has suffered damages;

94. As a result of the foregoing, defendants, individually and/or vicariously by and through their agents servants and/or employees acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to plaintiffs' rights and physical well-being;

95. As a result of the foregoing, plaintiffs have suffered damages;

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF MICHAEL GLICK FOR ASSAULT**

96. Plaintiff MICHAEL GLICK repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

97. As a result of the foregoing, defendants, individually and/or vicariously, by and through their agents, servants and employees, placed plaintiff in apprehension of imminent harmful and offensive contact, thereby committing an assault upon him;

98. As a result of the foregoing, plaintiff has suffered damages;

**AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF MICHAEL GLICK FOR BATTERY**

99. Plaintiff MICHAEL GLICK repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

100. As a result of the foregoing, plaintiff was without just cause or provocation, maliciously, and intentionally battered, physically abused, hand cuffed, kicked and beaten causing serious injury to plaintiff;

101. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally battered, physically abused, hand cuffed kicked and beaten plaintiff causing serious injury to plaintiff;

102. That the occurrence and injuries sustained by plaintiff, were caused solely by the malicious, reckless, and/or intentional conduct of the defendants, individually and/or vicariously by and through their, agents, servants and/or employees, without any provocation on the part of the plaintiff, contributing thereto;

103. As a result of the foregoing, plaintiff has suffered damages;

**AS AND FOR AN EIGHTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF MICHAEL GLICK FOR
FALSE ARREST AND IMPRISONMENT**

104. Plaintiff MICHAEL GLICK repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

105. As a result of the foregoing, plaintiff was, without just cause or provocation, maliciously, recklessly, and/or intentionally arrested, hand cuffed and imprisoned without probable cause resulting in serious physical and emotional injury to plaintiff;

106. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally arrested, hand cuffed and imprisoned plaintiff without probable cause resulting in serious physical and emotional injury;

107. That the occurrence and injuries sustained by plaintiff were caused solely by the malicious, reckless, and/or intentional conduct of the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without any provocation on the part of the plaintiff contributing thereto;

108. As a result of the foregoing, plaintiff **MICHAEL GLICK** has suffered damages;

**AS AND FOR A NINTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF MICHAEL GLICK FOR
NEGLIGENT AND INTENTIONAL INFLICTION OF
EMOTIONAL HARM**

109. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

110. As result of the foregoing, defendants, individually and or vicariously, by and through their agents, servants and/or employees, intentionally, wantonly, recklessly, carelessly and/or negligently engaged in extreme and outrageous conduct measured by the reasonable

bounds of decency tolerated by decent society thereby inflicting mental and emotional distress upon plaintiff;

111. As a result of the foregoing, plaintiff has suffered damages;

**AS AND FOR A TENTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF MICHAEL GLICK OF
NEGLIGENT HIRING, SUPERVISION AND
RETENTION**

112. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

113. That at all times hereinafter mentioned, the defendants, The City of New York and The New York City Police Department, by its agents, servants and/or employees carelessly, negligently, and recklessly hired applicants for the position of police officers;

114. That at all times hereinafter mentioned, the defendants, The City of New York and The New York City Police Department, by its agents, servants and/or employees carelessly, negligently, and recklessly trained applicants for the position of police officers;

115. That at all times hereinafter mentioned, the defendant, The City of New York and The New York City Police Department, by its agents, servants and/or employees carelessly, negligently and recklessly retained, supervised, controlled, managed, maintained and inspected the activities of its police officers;

116. That at all times hereinafter mentioned, the defendants, The City of New York and The New York City Police Department, by its agents, servants and/or employees caused, permitted and allowed its police officers to act in an illegal, unprofessional, negligent and/or deliberate manner in carrying out its official duties and/or responsibilities;

117. That at all times hereinafter mentioned, the defendants, The City of New York and

The New York City Police Department, by its agents, servants and/or employees carelessly, negligently and recklessly retained in its employ, police officers clearly unfit for the position who acted in an illegal, unprofessional, negligent and/or deliberate manner in carrying out their official duties and/or responsibilities prior to the date of the incident complained of herein;

118. That at the time and place aforesaid, the defendants The City of New York and The New York City Police Department, by its agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally assaulted, battered, physically abused, falsely arrested, hand cuffed, imprisoned, beat, strip searched and denied medical treatment to plaintiff causing serious personal injury to plaintiff;

119. That the occurrence and injuries sustained by plaintiff, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of the defendants, The City of New York and The New York City Police Department, its agents, servants and/or employees as set forth above, without any provocation on the part of the plaintiff contributing thereto, specifically, the negligent and reckless manner in which said defendants hired, trained, supervised, controlled, managed, maintained, inspected and retained its police officers and police department;

120. As a result of the foregoing, plaintiff has suffered damages;

AS AND FOR AN ELEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MICHAEL GLICK
FOR PUNITIVE DAMAGES

121. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

122. That the aforesaid occurrence and resulting injuries to plaintiffs were due to the willful, wanton, reckless and/or malicious conduct of the defendants, individually and/or

vicariously by and through their agents, servants and/or employees;

123. That the aforesaid occurrence and resulting injuries to plaintiffs were due to the conduct of defendants, individually and/or vicariously by and through their agents, servants and/or employees which reflect utter indifference to the safety and well-being of others and specifically the safety and well-being of plaintiffs;

124. That the conduct of defendants, individually and/or vicariously by and through their agents, servants and/or employees exhibited a reckless disregard for human life and the safety and well-being of others and more particularly, for the life, safety and well-being of plaintiffs;

125. As a result of the foregoing, plaintiff has suffered damages;

**AS FOR TWELFTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF JOHN LACY FOR
VIOLATION OF PLAINTIFF'S RIGHT TO BE FREE
FROM UNREASONABLE SEARCHES AND
SEIZURES UNDER THE FOURTH, FIFTH AND
FOURTEENTH AMENDMENTS TO THE UNITED
STATES CONSTITUTION PREDICATED UPON
FALSE ARREST AND IMPRISONMENT**

126. Plaintiff JOHN LACY repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

127. As a result of the aforescribed actions, including the arrest of plaintiff without probable cause, the defendants individually deprived plaintiff, JOHN LACY, of the rights, privileges and immunities secured by the Constitution and laws of the United States and the Fourteenth Amendments;

128. As a result of the aforescribed actions, the defendants individually deprived

plaintiff, JOHN LACY, of the right to be free from unreasonable search and seizures secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

129. As a result of the aforescribed actions, the defendants individually deprived plaintiff, JOHN LACY, of his right to liberty without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

130. As a result of the aforescribed actions, including the patently offensive and disparaging remarks made by defendant during the aforementioned seizure, arrest and incarceration of plaintiff, the defendants individually deprived plaintiff, JOHN LACY, of Equal Protection under the Law secured by the Constitution and laws of the United States and the Fourteenth Amendments;

131. The aforescribed conduct by defendants was instigated by defendants for other than lawful reasons and without probable cause;

132. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. § 1981, 1983, 1985 and 1986;

133. The aforescribed acts of defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

134. As a result of the foregoing, plaintiff has suffered damages;

**AS AND FOR A THIRTEENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JOHN LACY FOR
VIOLATION OF PLAINTIFF'S RIGHT TO BE FREE
FROM UNREASONABLE SEARCHES AND
SEIZURES UNDER THE FOURTH, FIFTH AND
FOURTEENTH AMENDMENTS TO THE UNITED
STATES CONSTITUTION PREDICATED UPON
USE OF EXCESSIVE FORCE**

135. As a result of the aforescribed actions, including the use of excessive physical

force upon the plaintiff, the defendants individually deprived plaintiff, JOHN LACY, of the rights, privileges and immunities secured by the Constitution and laws of the United States and the Fourteenth Amendments;

136. As a result of the aforescribed actions, the defendants individually deprived plaintiff, JOHN LACY, of the right to be free from unreasonable seizures secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

137. As a result of the aforescribed actions, the defendants individually deprived plaintiff, JOHN LACY, of his right to liberty without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

138. As a result of the aforescribed actions, including the patently offensive and disparaging remarks made by defendants during the aforementioned use of excessive force upon plaintiff, the defendants individually deprived plaintiff, JOHN LACY, of Equal Protection under the Law secured by the Constitution and laws of the United States and the Fourteenth Amendments;

139. The aforescribed conduct by defendants was instigated by defendants for other than lawful reasons and without probable cause;

140. The amount and type of physical force used upon plaintiff JOHN LACY by defendants was unnecessary, improper, excessive and not reasonably justified under any circumstances;

141. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. § 1981, 1983, 1985 and 1986;

142. The aforescribed acts of defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights and physical

well-being;

143. The aforementioned use of force caused immediate injury in the form of physical and emotional pain, suffering, bruises, shock, fright, humiliation, embarrassment and deprivation of plaintiff's constitutional rights;

144. As a result of the foregoing, plaintiff has suffered damages;

**AS AND FOR A FOURTEENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JOHN LACY FOR
VIOLATION OF PLAINTIFF'S RIGHT TO BE FREE
FROM UNREASONABLE SEARCHES AND
SEIZURES UNDER THE FOURTH, FIFTH AND
FOURTEENTH AMENDMENTS TO THE UNITED
STATES CONSTITUTION PREDICATED UPON
THE ILLEGAL STRIP SEARCH OF PLAINTIFF BY
DEFENDANTS**

145. Plaintiff JOHN LACY repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

146. As a result of the aforescribed actions, including the illegal strip search of the plaintiff by the defendants without probable cause to believe that plaintiff possessed contraband of any sort, the defendants individually deprived plaintiff, JOHN LACY, of the rights, privileges and immunities secured by the Constitution and laws of the United States and the Fourteenth Amendments;

147. As a result of the aforescribed actions, the defendants individually deprived plaintiff, JOHN LACY, of the rights to be free from unreasonable searches and seizures secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

148. As a result of the aforescribed actions, the defendants individually deprived plaintiff, JOHN LACY, of his right to liberty without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

149. As a result of the aforescribed actions, including the patently offensive and disparaging remarks made by defendants prior to and during the aforementioned strip search, the defendants individually deprived plaintiff, JOHN LACY, of Equal Protection under the Law secured by the Constitution and laws of the United States and the Fourteenth Amendments;

150. The strip search of plaintiff, JOHN LACY, by defendants was unnecessary, improper, excessive and not reasonably justified under any circumstances;

151. The aforescribed conduct by defendants was instigated by defendants for other than lawful reasons and without probable cause;

152. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. § 1981, 1983, 1985 and 1986;

153. The aforescribed acts of defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights and physical well-being;

154. The aforementioned strip search caused immediate injury in the form of emotional pain, suffering, shock, fright, humiliation, embarrassment and deprivation of plaintiff's constitutional rights;

155. As a result of the foregoing, plaintiff has suffered damages;

**AS AND FOR A FIFTEENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JOHN LACY FOR
VIOLATION OF PLAINTIFF'S RIGHT TO LIFE
AND LIBERTY UNDER THE FIFTH AND
FOURTEENTH AMENDMENTS TO THE UNITED
STATES CONSTITUTION PREDICATED UPON
THE DEFENDANTS' FAILURE TO PROVIDE
MEDICAL TREATMENT**

156. Plaintiff JOHN LACY repeats, reiterates and realleges each and every allegation

contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

157. As a result of the aforescribed actions, including the failure of defendants to provide medical treatment to plaintiff, the defendants individually deprived plaintiff, JOHN LACY, of the rights, privileges and immunities secured by the Constitution and laws of the United States and the Fourteenth Amendments;

158. As a result of the aforescribed actions, the defendants individually deprived plaintiff, JOHN LACY, of his right to life and liberty without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

159. As a result of the aforescribed actions, including the patently offensive and disparaging remarks prior to and during plaintiff's request for medical attention, the defendants individually deprived plaintiff, JOHN LACY, of Equal Protection under the Law secured by the Constitution and laws of the United States and the Fourteenth Amendments;

160. The aforescribed conduct by defendants was instigated by defendants for other than lawful reasons and without probable cause;

161. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §1981, 1983, 1985 and 1986;

162. The aforescribed acts of defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights and physical well-being;

163. The aforementioned failure to provide medical treatment caused immediate injury in the form of physical and emotional pain, suffering, shock, fright, humiliation, embarrassment and deprivation of plaintiff's constitutional rights;

164. As a result of the foregoing, plaintiff has suffered damages;

AS AND FOR A SIXTEENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JOHN LACY FOR
FAILURE TO INTERVENE TO PREVENT THE
VIOLATION OF PLAINTIFF'S CIVIL RIGHTS

165. Plaintiff JOHN LACY repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

166. As a result of the aforescribed actions, defendants, in particular the superior officers and those "John Doe" defendants who had supervisory authority over the individual defendants, individually, failed to intervene to prevent or end the unlawful and unconstitutional conduct inflicted upon plaintiff by defendants;

167. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §1981, 1983, 1985 and 1986;

168. The aforescribed acts of defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights and physical well-being;

169. The aforementioned failure to intervene caused immediate injury in the form of physical and emotional pain, suffering, shock, fright, humiliation, embarrassment and deprivation of plaintiff's constitutional rights;

170. As a result of the foregoing, plaintiff has suffered damages;

171. As a result of the foregoing, defendants, individually and/or vicariously by and through their agents servants and/or employees acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to plaintiffs' rights and physical well-being;

172. As a result of the foregoing, plaintiffs have suffered damages;

**AS AND FOR A SEVENTEENTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF JOHN LACY FOR ASSAULT**

173. Plaintiff JOHN LACY repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

174. As a result of the foregoing, defendants, individually and/or vicariously, by and through their agents, servants and employees, placed plaintiff in apprehension of imminent harmful and offensive contact, thereby committing an assault upon him;

175. As a result of the foregoing, plaintiff has suffered damages;

**AS AND FOR AN EIGHTEENTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF JOHN LACY FOR BATTERY**

176. Plaintiff JOHN LACY repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

177. As a result of the foregoing, plaintiff was without just cause or provocation, maliciously, and intentionally battered, physically abused, hand cuffed, kicked and beaten causing serious injury to plaintiff;

178. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally battered, physically abused, hand cuffed kicked and beaten plaintiff causing serious injury to plaintiff;

179. That the occurrence and injuries sustained by plaintiff, were caused solely by the malicious, reckless, and/or intentional conduct of the defendants, individually and/or vicariously

by and through their, agents, servants and/or employees, without any provocation on the part of the plaintiff, contributing thereto;

180. As a result of the foregoing, plaintiff has suffered damages;

AS AND FOR A NINETEENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JOHN LACY FOR
FALSE ARREST AND IMPRISONMENT

181. Plaintiff JOHN LACY repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

182. As a result of the foregoing, plaintiff was, without just cause or provocation, maliciously, recklessly, and/or intentionally arrested, hand cuffed and imprisoned without probable cause resulting in serious physical and emotional injury to plaintiff;

183. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally arrested, hand cuffed and imprisoned plaintiff without probable cause resulting in serious physical and emotional injury;

184. That the occurrence and injuries sustained by plaintiff were caused solely by the malicious, reckless, and/or intentional conduct of the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without any provocation on the part of the plaintiff contributing thereto;

185. As a result of the foregoing, plaintiff JOHN LACY has suffered damages;

AS AND FOR A TWENTIETH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JOHN LACY FOR
NEGLIGENT AND INTENTIONAL INFLICTION OF
EMOTIONAL HARM

186. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

187. As result of the foregoing, defendants, individually and or vicariously, by and through their agents, servants and/or employees, intentionally, wantonly, recklessly, carelessly and/or negligently engaged in extreme and outrageous conduct measured by the reasonable bounds of decency tolerated by decent society thereby inflicting mental and emotional distress upon plaintiff;

188. As a result of the foregoing, plaintiff has suffered damages;

**AS AND FOR A TWENTY-FIRST CAUSE OF
ACTION ON BEHALF OF PLAINTFF JOHN LACY
OF NEGLIGENT HIRING, SUPERVISION AND
RETENTION**

189. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

190. That at all times hereinafter mentioned, the defendants, The City of New York and The New York City Police Department, by its agents, servants and/or employees carelessly, negligently, and recklessly hired applicants for the position of police officers;

191. That at all times hereinafter mentioned, the defendants, The City of New York and The New York City Police Department, by its agents, servants and/or employees carelessly, negligently, and recklessly trained applicants for the position of police officers;

192. That at all times hereinafter mentioned, the defendant, The City of New York and The New York City Police Department, by its agents, servants and/or employees carelessly, negligently and recklessly retained, supervised, controlled, managed, maintained and inspected the activities of its police officers;

193. That at all times hereinafter mentioned, the defendants, The City of New York and The New York City Police Department, by its agents, servants and/or employees caused, permitted and allowed its police officers to act in an illegal, unprofessional, negligent and/or deliberate manner in carrying out its official duties and/or responsibilities;

194. That at all times hereinafter mentioned, the defendants, The City of New York and The New York City Police Department, by its agents, servants and/or employees carelessly, negligently and recklessly retained in its employ, police officers clearly unfit for the position who acted in an illegal, unprofessional, negligent and/or deliberate manner in carrying out their official duties and/or responsibilities prior to the date of the incident complained of herein;

195. That at the time and place aforesaid, the defendants The City of New York and The New York City Police Department, by its agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally assaulted, battered, physically abused, falsely arrested, hand cuffed, imprisoned, beat, strip searched and denied medical treatment to plaintiff causing serious personal injury to plaintiff;

196. That the occurrence and injuries sustained by plaintiff, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of the defendants, The City of New York and The New York City Police Department, its agents, servants and/or employees as set forth above, without any provocation on the part of the plaintiff contributing thereto, specifically, the negligent and reckless manner in which said defendants hired, trained, supervised, controlled, managed, maintained, inspected and retained its police officers and police department;

197. As a result of the foregoing, plaintiff has suffered damages;

**AS AND FOR A TWENTY-SECOND CAUSE OF
ACTION ON BEHALF OF PLAINTIFF JOHN LACY**

FOR PUNITIVE DAMAGES

198. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

199. That the aforesaid occurrence and resulting injuries to plaintiffs were due to the willful, wanton, reckless and/or malicious conduct of the defendants, individually and/or vicariously by and through their agents, servants and/or employees;

200. That the aforesaid occurrence and resulting injuries to plaintiffs were due to the conduct of defendants, individually and/or vicariously by and through their agents, servants and/or employees which reflect utter indifference to the safety and well-being of others and specifically the safety and well-being of plaintiffs;

201. That the conduct of defendants, individually and/or vicariously by and through their agents, servants and/or employees exhibited a reckless disregard for human life and the safety and well-being of others and more particularly, for the life, safety and well-being of plaintiffs;

202. As a result of the foregoing, plaintiff has suffered damages;

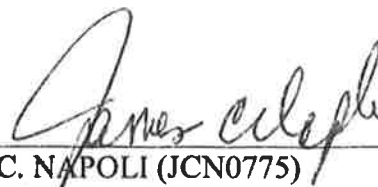
REQUEST FOR RELIEF

WHEREFORE, plaintiffs demand the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
February 6, 2015

CAESAR AND NAPOLI, P. C.

A handwritten signature in cursive script, appearing to read "James C. Napoli", is written over a horizontal line.

JAMES C. NAPOLI (JCN0775)

Attorneys for Plaintiffs

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New York, New York 10279

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